Harikesh Yadav vs District Magistrate Kushinagar And 5 ... on 14 June, 2021

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Court No. - 74

Case :- PUBLIC INTEREST LITIGATION (PIL) No. - 1754 of 2020

Petitioner :- Harikesh Yadav

Respondent :- District Magistrate Kushinagar And 5 Others

Counsel for Petitioner :- Santoosh Kumar Dwivedi

Counsel for Respondent :- C.S.C.

Hon'ble J.J. Munir,J.

This writ petition has been filed seeking a writ, order or direction in the nature of mandamus commanding the respondent-authorities to take necessary action against respondent nos. 5 and 6 for removal of encroachment made by them over plot no. 619 situate in Village Bagahi Tehsil Tamkuhiraj, District Kushinagar. On 04.01.2021, a detailed order was passed by this Court directing the learned Standing Counsel to obtain instructions from the competent authority as to why the said authority has been prima facie negligent in performance of its statutory duties. The order dated 04.01.2021 is extracted below:

> "Learned counsel for the petitioner contends that the petitioner has intimated the competent authority about the encroachment of public land. Despite receipt of such information with material particulars the competent authority failed to discharge the statutory obligations under Section 67(2) of the Uttar Pradesh Revenue Code, 2006.
>
> The proceedings are pending for an inordinately long time, without good reasons. The authorities have not implemented the statutory mandate.

Due to apathy and failure on part of the respondents have been emboldened to continue the encroachment with a sense of impunity.

Public land in the State of U.P. is most vulnerable to encroachment. Encroachment over such public land is not countenanced by the legislature. The Uttar Pradesh Revenue Code, 2006, is the response of the legislature to deal with the endemic problem of encroachment over public lands. The purpose of legislative intent will be defeated in case the statutory authorities do not discharge their statutory functions in a timely manner.

Encroachment on public lands causes irreversible damage to public interest.

The courts too have set their face against such encroachment.

The officials charged with the duty, to investigate and clear such encroachment, are under an obligation of law to proceed with dispatch, efficiency and in conformity with the provisions of the statute while dealing with issues relating to encroachment over public lands.

Issue notice to the respondent nos. 5 and 6 by registered post AD as well as by regular process returnable within four weeks. Steps be taken within two weeks.

Learned Standing Counsel to obtain instructions from the competent authority as to why the said authority has been prima facie negligent in performance of its statutory duties.

In case, the instructions are not forthcoming on the next date the concerned person/official shall remain present in person before this Court along with the records, to assist the Court.

Put up on 24.02.2021 in the list of fresh cases before the appropriate Bench.

It is made clear that this case shall not be treated as tied up or part heard to this Bench."

Today, Mr. P.K. Giri, learned Additional Chief Standing Counsel makes a statement on behalf of the State that proceedings under Section 67 of the U.P. Land Revenue Code were drawn against respondent nos. 5 and 6 and after due course of those proceedings, eviction order was passed. The restoration application made by the said respondents was rejected. These facts already find place in the writ petition. The stand of the State is that the eviction order has already been executed on 22.02.2021 and respondent nos. 5 and 6 have been evicted from plot no. 619, last mentioned.

This petition was presented on 07.12.2020 and this Court called for a response from the State on 04.01.2021. It is obvious that the said authorities have taken necessary action to evict the

encroacher from the public land.

In view of the statement made by the learned Additional C.S.C., there is no occasion to pass any further orders.

Learned counsel for the petitioner, on being asked to verify the facts from his client telephonically, as much time as elapsed, is not in a position to make any statement in the matter as his client does not respond to the efforts made by him to establish telephonic contact.

In the circumstances, this writ petition is consigned to the record. It is, however, made clear that in the event there is any inaccuracy in the State's stand and encroachment still exists, it will be open to the petitioner to move an application seeking recall of this order.

Order Date :- 14.6.2021 Deepak